COGS OF AUSTRALIA FOUNDATION

COG$ — Community Owned Gold and Silver / Community Operated Governance Structure

MEMBERS ASSET POOL UNIT TRUST DEED

COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Sub-Trust A

In-Ground Mineral Value Doctrine · Indigenous Heritage Framework · Members Dividend Structure · Approved Ledger and RWA Infrastructure

CARETAKER TRUSTEE	Thomas Boyd Cunliffe of 780 Sugarbag Road West, DRAKE 2469 NSW, in his capacity as Caretaker Trustee unless and until he retires, is removed, or a later trustee structure is validly constituted under the Declaration.
DECLARANT	Thomas Boyd Cunliffe of 780 Sugarbag Road West, DRAKE 2469 NSW. As Declarant and Caretaker Trustee, he declares that Sub-Trust A is a ring-fenced division of the CJVM Hybrid Trust constituted by this Deed as a sub-trust instrument under the Declaration. The Initial Trust Property is described in the Declaration and in Schedule 1 of this Deed.
GOVERNING LAW	South Australia, Australia.
PRINCIPAL LEGISLATION	Corporations Act 2001 (Cth); Trustee Act 1936 (SA); Law of Property Act 1936 (SA); Charities Act 2013 (Cth); Native Title Act 1993 (Cth); AML/CTF Act 2006 (Cth); Privacy Act 1988 (Cth); Income Tax Assessment Act 1997 (Cth); Evidence Act 1929 (SA); Electronic Transactions Act 1999 (Cth); Electronic Transactions Act 2000 (NSW).
FOUNDING AND PREVAILING INSTRUMENT	This Deed is a sub-trust instrument made under and subordinate to the Declaration. The Declaration is subordinate to the Joint Venture Participation Agreement, which is the supreme governing instrument of the Joint Venture. In the event of any inconsistency between this Deed and the Declaration, the Declaration prevails. In the event of any inconsistency between this Deed or the Declaration and the Joint Venture Participation Agreement, that Agreement prevails.
PERPETUAL DURATION	This Deed is perpetual. Sub-Trust A has no vesting date. Amendment is governed by Part 11 consistently with the Declaration.

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Thomas Boyd Cunliffe of 780 Sugarbag Road West, DRAKE 2469 NSW

EXECUTED AS A DEED by Thomas Boyd Cunliffe as Declarant and Caretaker Trustee of Sub-Trust A on 21 April 2026, in a separate audio-visual connection held shortly following execution of the Hybrid Trust Declaration, by electronic means in accordance with the Electronic Transactions Act 1999 (Cth) and section 14G of the Electronic Transactions Act 2000 (NSW). No wet ink signature or paper counterpart is required or produced. The witnessing requirement for this deed is satisfied by the electronic attestation of Alexander Stefan Gorshenin via that audio-visual connection under section 14G of the Electronic Transactions Act 2000 (NSW).

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CLASS RIGHTS OVERVIEW

Interpretive note: unless a class is expressly identified as participating in Sub-Trust B, it carries no Sub-Trust B beneficiary distribution right. Donation rights are routed through the D Class provisions to Sub-Trust C. Records maintained through the Approved Ledger Infrastructure supplement, and do not displace, the governing legal record unless this Deed expressly provides otherwise. Sub-Trust A is the sole registry and issuing authority for all Unit Classes and the record of their corresponding COG$ Tokens.

COGS CLASS STRUCTURE SCHEDULE

The controlling table of Unit Classes and corresponding COG$ Tokens, together with lawful issue conditions and corresponding COG$ Token-recording conditions, is set out in Schedule 9, Part A of the Declaration.

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PART 1 — PRELIMINARY

1. Name and Operative Status

1.1 This instrument is the COGS of Australia Foundation Members Asset Pool Unit Trust Deed (this Deed) establishing Sub-Trust A — the Members Asset Pool Unit Trust — of the COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust (the CJVM Hybrid Trust).

1.2 From execution of this Deed, Thomas Boyd Cunliffe is the Caretaker Trustee of Sub-Trust A in his capacity as the Caretaker Trustee and continuing trustee of the CJVM Hybrid Trust under the Declaration. The trustee structure of Sub-Trust A is at all times the trustee structure of the CJVM Hybrid Trust under the Declaration. Changes to the trustee — whether by appointment of additional trustees, retirement, replacement, or appointment of a corporate trustee — are governed exclusively by the Declaration and by the Trustee Act 1936 (SA). No separate deed of appointment or retirement is required to preserve continuity of the trusts of this Deed; however, the outgoing trustee and the incoming trustee must execute any deed, notice, transfer, vesting instrument, registry form, bank mandate, CHESS re-registration, or other document reasonably necessary to evidence, perfect, register, or operationalise the change in trustee.

1.3 This Deed is a supplementary sub-trust instrument made under and subordinate to the Declaration. The Declaration is the principal operative and governing instrument for all community, economic, governance, and First Nations heritage activities of the Foundation. This Deed governs the specific provisions of Sub-Trust A as a ring-fenced division of the CJVM Hybrid Trust. Declaration Schedule 9, Part A is the controlling Issue-and-Record Matrix for lawful Unit issuance and corresponding COG$ Token minting or recording, is incorporated into this Deed by reference, and the class clauses in this Deed are descriptive only to the extent they summarise that matrix. In the event of any inconsistency, the Declaration prevails.

1.4 This Deed is perpetual and may only be amended in accordance with Part 11 and consistently with the Declaration.

1.5 This Deed is executed as a deed by Thomas Boyd Cunliffe as Declarant and Caretaker Trustee of Sub-Trust A. It may be executed by electronic means in accordance with the Electronic Transactions Act 1999 (Cth) and, where applicable, section 14G of the Electronic Transactions Act 2000 (NSW). No wet ink signature, physical original, or paper counterpart is required. If witnessing is required by applicable law, that requirement may be satisfied by electronic attestation, including by audio-visual connection where permitted by law. This Deed takes effect from execution. Where this Deed is executed on the same calendar date as the Declaration by a separate audio-visual connection held shortly following execution of the Declaration, it remains a separate instrument with its own Deed Execution Record and is deemed for instrument-suite dating and effect to take effect on that same date. On each occasion that the trustee structure of the CJVM Hybrid Trust changes in accordance with the Declaration, the incoming trustee or trustees automatically assume the rights, powers, duties, and obligations of the trustee under this Deed. The outgoing trustee and the incoming trustee must do all things and execute all documents reasonably necessary to evidence, perfect, register, vest, or otherwise give practical effect to that transition in relation to trust property, bank accounts, regulatory records, CHESS holdings, Members Vault operations, and any associated contractual or administrative arrangements.

1.5A This Deed may be executed electronically. The electronically authenticated instrument is the original deed. No physical original, paper counterpart, or wet ink certified copy is required or produced. The Deed Execution Record - comprising the Declarant execution record and the Caretaker Trustee execution record, together with any required electronic witness attestation embedded in or associated with those records under applicable law - must be stored in the Foundation's secure systems. The Deed Execution Record for this Deed is separate from the Declaration Execution Record. A SHA-256 hash of the Deed Execution Record may be committed to the Foundation's governance record as the canonical integrity reference for this Deed. An electronically authenticated PDF of this Deed, produced from the Foundation's secure systems and bearing or referring to that integrity reference, is a legal copy of this instrument for all purposes. "Certified copy" in this Deed means an electronically

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authenticated PDF produced under this clause, or a printed copy of such a PDF certified as a true copy by a legal practitioner holding an unrestricted practising certificate in any Australian jurisdiction, a notary public, or a Justice of the Peace. The Foundation must preserve the Deed Execution Record and the electronically executed instrument for the operational life of this Deed and for not less than seven (7) years after the lawful dissolution of the CJVM Hybrid Trust, whichever period is longer. The FNAC may access the Deed Execution Record and the electronically executed instrument through the Foundation's secure systems on written request. If the integrity of the Deed Execution Record is disputed, resolution is by SHA-256 hash verification against the recorded integrity reference. If hash verification is technically impossible or inconclusive, the Trustee must apply to the Supreme Court of South Australia for directions.

1.6 The Foundation trades as COG$ (Community Owned Gold and Silver / Community Operated Governance Structure) and may use that abbreviated name in any public-facing materials.

1A. Caretaker Trustee Period — Restrictions and Permitted Actions

1A.1 Until the trustee structure of the CJVM Hybrid Trust is expanded under clause 1.8 of the Declaration, Thomas Boyd Cunliffe of 780 Sugarbag Road West, DRAKE 2469 NSW holds office as the Caretaker Trustee and continuing trustee of Sub-Trust A in his personal capacity as Caretaker trustee of the CJVM Hybrid Trust. This arrangement is valid under the Trustee Act 1936 (SA) and general equity principles.

1A.2 During the initial period, all references in this Deed to the Trustee and the Board are to be read as references to the Caretaker Trustee to the extent required to give effect to this Deed, except where the context otherwise requires.

1A.3 During the Caretaker Trustee period, the following restrictions apply, consistently with Declaration clause 1.7.3. Lawful issue conditions and corresponding COG$ Token-recording conditions for all Unit Classes are governed by Declaration Schedule 9, Part A: (a) Personal S-NFT COG$ / Class S Units and Business B-NFT COG$ / Class B Units are the only Unit Classes that may be issued following execution of the Declaration, subject to this Declaration, this Deed, applicable law, and Declaration Schedule 9, Part A. (b) No other Unit Class may be lawfully issued or allocated, as applicable, except in accordance with the applicable issuance gate and conditions in Declaration Schedule 9, Part A. (c) A corresponding COG$ Token of any class may be minted or recorded only in accordance with Declaration Schedule 9, Part A and after completion of the required administrative verification and approval process. (d) During this period, the Caretaker Trustee may execute this Deed, maintain or redesignate trust accounts, appropriate and earmark the Trust Property, take all preparatory steps necessary to satisfy the applicable Governance Foundation Day conditions and the Expansion Day steps in Declaration clause 12B.3, and conduct or facilitate Governance Foundation Day to the extent authorised by the Declaration. (e) The Caretaker Trustee may receive fiat payment for Personal S-NFT COG$ / Class S Units and Business B-NFT COG$ / Class B Units in connection with lawful issue, but may not enter into contracts binding the Trust Fund beyond preparatory steps and performs only Trustee Functions as defined in the Declaration and the Joint Venture Participation Agreement during the Caretaker Trustee period.

1A.4 The Caretaker Trustee has a right of indemnity from trust property for all liabilities properly incurred in carrying out this clause. This right of indemnity survives any later appointment of additional trustees, any retirement, and any valid reconstitution of the trustee structure.

1A.5 The governance structure of the CJVM Hybrid Trust must be actively progressed in accordance with Declaration clause 1.7.5. The Caretaker Trustee must use reasonable endeavours within twelve (12) months of execution to constitute the governance body required by the Declaration, and must convene the Inaugural Meeting within two (2) years of execution. The twelve (12) month period is an endeavours obligation only and does not displace the operative two (2) year deadline.

1B. Managing Director and Caretaker Trustee Lock Period

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1B.1 The Caretaker Trustee, Thomas Boyd Cunliffe, and any person first appointed as Managing Director of a CLG adopted as corporate trustee of the CJVM Hybrid Trust, is subject to a twelve (12) month lock period commencing on the date of their respective appointment (the MD Lock Period). During the MD Lock Period, that person may not be removed from office except for cause. This is an entrenched provision under Declaration clause 35.

1B.2 Removal for cause during the MD Lock Period is permitted only on one or more of the following grounds: (a) material breach of fiduciary duty that has not been remedied within 30 days of written notice by the Board; (b) conviction of a criminal offence involving dishonesty, fraud, or a penalty of imprisonment; (c) loss of legal capacity under applicable law; (d) unanimous resolution of the remaining Board members, supported by independent legal advice from qualified South Australian counsel, on the grounds of material and persistent failure to comply with an entrenched provision; or (e) a court order made by the Supreme Court of South Australia or a court of competent jurisdiction.

1B.3 No resolution of Members or Beneficiary Holders may remove the Caretaker Trustee or first appointed Managing Director during the MD Lock Period except on the grounds set out in clause 1B.2 and only following the procedure in clause 1B.4.

1B.4 Before any removal for cause during the MD Lock Period may take effect: (a) written notice specifying the grounds must be given to the person proposed for removal not fewer than 14 days before any meeting at which removal is to be considered; (b) the person proposed for removal must be given a reasonable opportunity to address the Board or Members in person or in writing; and (c) the removal must be approved by Special Resolution (75% majority) of the Members, unless the ground is a court order under clause 1B.2(e).

1B.5 The MD Lock Period applies once only to the Caretaker Trustee in respect of the initial 12 months from execution of the Declaration, and once only to the first appointed Managing Director of any CLG in respect of the first 12 months from that person's appointment. Successive holders are not subject to this clause.

1B.6 This clause is an entrenched founding governance protection and may not be amended, removed, or circumvented by any resolution during the MD Lock Period. After the MD Lock Period expires, this clause may be amended by Special Resolution (75% majority) in accordance with the amendment provisions of the Declaration.

2. Definitions

In this Deed, unless the context otherwise requires, the following definitions apply. References to Beneficiary Holders in this Deed include Members as defined in the Joint Venture Participation Agreement. The two terms refer to the same persons in their respective capacities under the instrument suite. Member means a person who holds a Beneficial Unit and the corresponding COG$ Token and has thereby accepted the entrenched foundation of the Joint Venture under the JVPA. Trustee Functions has the meaning given in the Declaration and the Joint Venture Participation Agreement. Expansion Day has the meaning given in the Declaration — the date on which the Members activate the [Gundoo Ngiri] Proprietary Node on the Members Consensus Network. Terms defined in the Declaration have the same meanings here unless separately defined below. References to "the Declaration" are references to the COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust Declaration as in force from time to time.

3. Interpretation

3.1 Words in singular include plural and vice versa.

3.2 A reference to a person includes a corporation, trust, partnership, joint venture, association, or other legal entity.

3.3 A reference to legislation includes any amendment, re-enactment, or subordinate instrument made under it.

3.4 Headings are for convenience only and do not affect interpretation.

3.5 The Schedules form part of this Deed.

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3.6 In the event of any inconsistency between this Deed and any CLG constitution or other constituent document adopted for a corporate trustee, the Declaration prevails in all matters relating to the CJVM Hybrid Trust and Beneficiary Holder rights, subject to the Corporations Act to the extent of any inconsistency.

3.7 In the event of any inconsistency between this Deed and the Corporations Act or the Trustee Act, those statutes prevail to the extent of the inconsistency.

3.8 No reference in this Deed to Foundation Day without qualification authorises or governs the issuance of any Unit Class or the minting or recording of any corresponding COG$ Token. Those matters must be determined by express reference to Governance Foundation Day or Expansion Day, as applicable, in accordance with the Declaration.

3.9 The Trustee's powers under this Deed are limited to Trustee Functions as defined in the Declaration and the Joint Venture Participation Agreement. The Members exercise operational authority through their proprietary cryptographic systems under the Joint Venture Participation Agreement. No schedule, policy, protocol, software logic, smart-contract implementation, board resolution, side arrangement, or administrative practice may amend, dilute, delay, circumvent, or achieve indirectly what this Deed, the Declaration, or any entrenched provision prohibits directly, except by a valid amendment made in accordance with the Declaration and this Deed.

3.10 Any purported issue, minting, recording, transfer, redemption, exchange, cancellation, or other disposition of a Unit or corresponding COG$ Token made in breach of an entrenched provision, an issuance gate, a mandatory pre-condition, or the fiat-sale prohibition is ineffective to the extent permitted by law, confers no beneficial entitlement, and must be corrected in the relevant register and governance records as soon as practicable.

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PART 2 — ESTABLISHMENT, NAME, AND PERPETUITY

4. Establishment and Declaration

4.1 The Trustee declares that it holds the Trust Fund as a ring-fenced division of the CJVM Hybrid Trust on the trusts and subject to the powers and conditions of this Deed and the Declaration.

4.2 The trust established by this Deed is known as the Members Asset Pool Unit Trust, being Sub-Trust A of the COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust.

4.3 The Trust Fund is constituted by assets received through the lawful issue of Units and the corresponding recording or minting of COG$ Tokens through the Members Vault. The Initial Trust Property described in Schedule 1 constitutes the CJVM Hybrid Trust as a whole — it does not separately settle Sub-Trust A. All Trust Fund assets beyond the Initial Trust Property enter Sub-Trust A exclusively as: (a) the invested component ($2.00 per Class D Unit) of Donation COG$ / Class D Unit consideration applied to acquire ASX Shares; (b) the $1.00 investment component of each Personal S-NFT COG$ / Class S Unit membership fee applied through Sub-Trust A; (c) the $1.00 investment component of each Kids S-NFT COG$ / Class kS Unit membership fee applied through Sub-Trust A; (d) the $10.00 investment component of each BNFT / Class B Unit membership fee applied through Sub-Trust A; and (e) the full issue proceeds of ASX COG$ / Class A Units, Landholder COG$ / Class Lh Units, Business Property COG$ / Class BP Units, RWA COG$ / Class R Units, and Community COG$ / Class C Units. The $2.00 direct Sub-Trust C component of Donation COG$ / Class D Unit consideration flows directly to Sub-Trust C and does not form part of the Trust Fund.

4.4 This Deed is perpetual. Sub-Trust A has no vesting date. No provision of this Deed may be construed as imposing a vesting date, trust period, or expiry of any beneficial interest.

4.5 Sub-Trust A is a ring-fenced Members Asset Pool unit trust forming part of the CJVM Hybrid Trust. No Trust Fund assets may be applied for the private benefit of any person except as expressly permitted by this Deed and the Declaration.

4.6 Sub-Trust A is permanently ring-fenced from Sub-Trust B and Sub-Trust C. Assets may not be commingled across sub-trusts except as expressly provided by the Declaration. This is an entrenched provision (Declaration clause 35(c)).

4.7 This Deed is in all respects subordinate to the Declaration. Any provision of this Deed inconsistent with any provision of the Declaration — including any entrenched provision listed in clause 35 — is void and of no legal effect.

4.8 Lawful issue conditions and corresponding COG$ Token-recording conditions for all Unit Classes are governed by Declaration Schedule 9, Part A (the Issue-and-Record Matrix), read with Parts 12A and 12B of the Declaration. Declaration Schedule 9, Part A is incorporated into this Deed by reference and is controlling to the extent that any class description in this Deed summarises or restates the applicable issue-and-record conditions.

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PART 3 — REGISTRY, ISSUE, AND RECORD OF CORRESPONDING TOKENS

5. Registry and Issue Authority

5.1 Sub-Trust A is the sole registry and issuing authority for all Unit Classes and the record of their corresponding COG$ Tokens issued by the Foundation. All corresponding COG$ Tokens are minted or recorded through Sub-Trust A by means of the Members Vault only in accordance with Declaration Schedule 9, Part A. The Members Vault may operate on any Approved Ledger Infrastructure as determined by the Board from time to time in accordance with the Declaration. No corresponding COG$ Token of any class may be minted or recorded by any other means.

5.2 Every minting operation requires the cryptographic authorisation of not fewer than three (3) Board members through the Members Vault. The three-of-Board cryptographic authorisation requirement must be implemented in the Approved Ledger Infrastructure and cannot be bypassed, reduced, or overridden by any technical, administrative, or contractual mechanism. This is an entrenched provision (Declaration clause 35(t)). The multisignature mechanism is a security authentication function, not an operational control function. It verifies the integrity and validity of Member-initiated transactions and does not confer decision-making authority on the Trustee. If the Trustee fails to apply its cryptographic authorisation within 5 business days of a valid Member request and has not provided written reasons identifying the specific legal provision that would be breached, the Member request is deemed approved and the System must execute the operation automatically without Trustee authorisation, in accordance with the Joint Venture Participation Agreement.

5.2A Temporary inability to satisfy the Board authorisation threshold. If fewer than three authorised Board members are available to provide the cryptographic authorisation required by clause 5.2 because of death, incapacity, vacancy, conflict, resignation, suspension, or any other temporary or permanent cause, the Trustee must treat the Members Vault as unavailable for any discretionary operation requiring that authorisation. No discretionary minting, transfer, cancellation, zone update, ledger amendment, or other Members Vault operation requiring that authorisation may be carried out until the Board is reconstituted or directions are obtained from the Supreme Court of South Australia or another court of competent jurisdiction.

5.2B Preservation and notice during temporary threshold failure. During any period described in clause 5.2A, the Trustee may take only those steps reasonably necessary to preserve trust property, protect records and key material, comply with law, maintain custody and records continuity, notify regulators and affected governance bodies, and seek directions from the Court. The Trustee must promptly give written notice of the threshold failure to the FNAC and to the continuing trustee body or trust records custodian. Any continuity, migration, or infrastructure steps undertaken during that period are preservation steps only and do not authorise any variation of Beneficiary rights or any bypass of the three-of-Board requirement.

5.3 All lawful Unit issuances are administered through the Members Vault on the Approved Ledger Infrastructure. Any corresponding Token minting or recording event is administered through the Members Vault only in accordance with Declaration Schedule 9, Part A. The governance record maintained through that Approved Ledger Infrastructure is the authoritative register of corresponding Token representations and related Beneficial Unit entitlements, subject to any superior legal record expressly identified in this Deed or the Declaration. From the date of execution until the Approved Ledger Infrastructure is fully operational, the Members' operational control is exercised through the Foundation's online cryptographic database system, which constitutes the first implementation of the Members' proprietary cryptographic governance system. The deployment of blockchain technology is a technology evolution, not the commencement of Member control.

5.4 No single person or entity may hold more than 1,000,000 Units across all classes combined, together with their representative COG$ Tokens, excluding Resident COG$ / Class Lr Units and their corresponding Tokens, which are auto-allocated governance instruments and do not count toward the anti-capture cap. This cap applies to the underlying Units and the corresponding Tokens that represent them. It is a quantity cap — not a financial value cap — and is entrenched (Declaration clause 35(f)).

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5.5 No corresponding COG$ Token of any class, and no corresponding Unit, may be sold in secondary dealings for fiat currency, listed on any exchange, or converted to cash under any circumstances. This prohibition does not prevent the initial lawful payment of fiat consideration to the Trust for Unit issuance. This prohibition is absolute in relation to secondary dealings and is entrenched (Declaration clause 35(w)).

5A. Foundation Ledger Administration and Continuity

5A.1 Infrastructure expenditure as trust administration expenditure

Sub-Trust A may treat expenditure on the development, acquisition, and maintenance of Members Consensus Network infrastructure — including Proprietary Node hardware, hardware security modules, network connectivity, and software development costs — as a legitimate operational expense incurred for the administration of the Trust, to be funded from the administration components of Tier 1 unit membership fees and the Trustee administration allocation of the Donation Dividend Stream, in each case subject to the fee and expense limits in Declaration clause 18. Any exercise of this clause may be undertaken only for Foundation administration, governance record integrity, Member-controlled infrastructure, regulatory compliance, or protection of Beneficiary Holders' interests, and does not authorise any variation of Beneficiary rights.

5A.2 Intellectual property in Foundation record infrastructure

All intellectual property developed in connection with the Members Consensus Network or any other Foundation ledger infrastructure — including protocol specifications, consensus algorithm implementations, smart contract or equivalent code, governance tooling, and node software — is an asset of Sub-Trust A held in perpetuity for the benefit of all Beneficiary Holders. No such intellectual property may be licensed exclusively to any third party, transferred to any for-profit entity, or made unavailable to the Foundation without a Special Resolution (75% majority) of Beneficiary Holders. The Foundation may publish the Members Consensus Network as open-source software provided it retains governance rights over the protocol as used in Foundation operations.

5A.3 Continuity of record infrastructure on migration

The Trustee and Board must at all times maintain the capability to migrate Members Vault operations from any existing Approved Ledger Infrastructure to an alternative within a period not exceeding 90 days where this is necessary for the proper administration of the Trust, the continuity of governance records, or the protection of Beneficiary Holders' interests. This obligation requires the Trustee to: (a) maintain documented migration procedures; (b) ensure that no single infrastructure vendor, protocol, or service provider holds exclusive custody of Foundation governance records; (c) maintain an archive of all governance records in a format that is portable to alternative infrastructure; and (d) test migration capability at least annually and report the outcome to the Board and, where applicable, to any compliance committee established under the Declaration or the Corporations Act.

6. Unit Classes and Corresponding Token Records

6.1 Sub-Trust A administers Unit issuance and corresponding COG$ Token recording in accordance with Declaration Schedule 9, Part A. This Part states the funds-flow and Beneficial Unit consequences of each class. For every class described in this clause 6, after lawful issue of the relevant Unit the Members Vault completes the required administrative verification and approval process for the corresponding COG$ Token and mints or records that Token at the earliest practicable time thereafter, in accordance with Declaration Schedule 9, Part A; this Part does not repeat that statement in each class description.

Tier 1 — Administration and Governance Unit Classes

6.2 Personal S-NFT COG$ (Class S). One per natural person, aged 18 or over. Membership fee $4.00 AUD — permanently fixed (Declaration clause 35(x) — entrenched). Of the $4.00: $3.00 applied to Administration Costs and $1.00 applied through Sub-Trust A toward the ASX COG$/RWA investment component attached to S Class (Declaration clause 21.1). On lawful issue of the Class S Unit, Sub-Trust A activates one corresponding Beneficial Unit (social justice mechanism — Declaration clause 35(q) — entrenched). Confers one national governance vote. Soulbound.

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6.3 Kids S-NFT COG$ (Class kS). Acquired by a Member on behalf of a child or grandchild. Membership fee $1.00 AUD — permanently fixed (Declaration clause 35(x) — entrenched). The $1.00 is applied in full through Sub-Trust A toward the ASX COG$/RWA investment component attached to kS Class (Declaration clause 25.1). Sub-Trust A activates one Beneficial Unit held in trust for the child until age 18 and a proxy governance vote. On the child's 18th birthday the Class kS Unit automatically converts to a full Personal S-NFT COG$ / Class S Unit with all adult governance rights fully activated. No additional unit consideration is payable on conversion. The conversion is irrevocable. Soulbound.

6.4 Business B-NFT COG$ / BNFT (Class B). Issued to eligible incorporated entities and legal persons via active ABN (one per entity). Membership fee $40.00 AUD per Declaration clause 28A: $30.00 applied to Administration Costs and $10.00 applied through Sub-Trust A toward the ASX COG$/RWA investment component attached to B Class (Declaration clause 26A.1). On lawful issue of the Class B Unit, Sub-Trust A activates one corresponding Beneficial Unit. Confers one limited governance vote on Trustee appointment, removal, or replacement within the Trustee structure only — no general national governance right. Entity-bound.

6.5 Pay It Forward COG$ (Class P). Issued to any Member or the Trustee. Proceeds fund free Personal S-NFT COG$ or Kids S-NFT COG$ memberships for eligible recipients. No Beneficial Unit before allocation. On allocation to an eligible recipient, the funded membership is issued and the P Class entry is cancelled or exhausted (Declaration clause 26.6(d)).

6.6 Resident COG$ (Class Lr). Allocated by the Trustee by reason of verified residency within a declared Affected Zone overlay. An eligible resident receives 1,000 Class Lr Units for each declared zone overlay for which that resident satisfies the applicable residency criteria. Those 1,000 Class Lr Units represent the resident's additional weighted local governance entitlement and, when added to the resident's standard one-Member-one-vote entitlement, produce an effective total of 1,001 votes to 1 vote in a Local Decision Vote concerning that specific declared zone overlay. That weighting does not aggregate across multiple overlays except to the extent, if any, expressly provided in the Declaration or the Voting Weight Rules. Class Lr carries no Beneficial Unit, no yield, and no national governance vote. It confers weighted local governance rights only.

6.7 Donation COG$ (Class D). Unit consideration $4.00 AUD (or current unit consideration per Declaration clause 28A). On each lawful Class D Unit issue: (a) $2.00 paid directly to Sub-Trust C within 2 business days; (b) $2.00 invested through Sub-Trust A in approved Members Asset Pool assets, attributed in the Donation Ledger; and (c) Sub-Trust C registered as D Class Beneficial Unit Holder for each validly issued Class D Unit. No personal Beneficial Unit on the donor. Not a managed investment scheme interest.

Tier 2 — Members Asset Pool Unit Classes (from Expansion Day)

6.8 Except as otherwise expressly provided in this Deed and the Declaration for a particular class, the invested component or, where applicable, the full recorded constitutional unit consideration of each Tier 2 Unit Class is applied to acquire ASX Shares or other approved Members Asset Pool assets. Each validly issued Tier 2 Unit activates one corresponding Beneficial Unit. The lawful issue and corresponding COG$ Token-recording conditions for each Tier 2 Unit Class are governed by Declaration Schedule 9, Part A. No Tier 2 Unit issuance may occur without the Members and Trustee being in compliance with all applicable disclosure obligations under law. Classes: ASX COG$ / Class A; Landholder COG$ / Class Lh — up to 1,000 Units per hectare of eligible land, weighted affected-zone governance, and one hundred per cent (100%) of all Class Lh Unit consideration is applied to Sub-Trust A; Business Property COG$ / Class BP — weighted affected-zone governance; RWA COG$ / Class R — cryptographically verified real world assets recorded through the Approved Ledger Infrastructure; Community COG$ / Class C — initial allocation: 1,000 CC per Individual Member (Class S) and 10,000 CC per Business Member (Class B) on admission, by standing Members Poll direction. Additional CC issued by the Trustee at Members' direction (Members Poll) for approved contributions. Pre-Expansion Day records maintained in the Foundation's database with cryptographic hashes. Migrated on-chain at Expansion Day. ASX COG$ / Class A is subject to a 12-month Stewardship Season from Expansion Day (Declaration clause 35(j) — entrenched).

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7. Issue and Record Conditions

7.1 The Trustee must not lawfully issue any Unit or mint or record any corresponding COG$ Token unless: (a) the applicable issuance gate and conditions in Declaration Schedule 9, Part A have been satisfied; (b) the applicant has completed KYC and AML/CTF verification; (c) the applicable membership fee or unit consideration has been received and cleared; (d) the anti-capture cap of 1,000,000 Units across all classes combined (subject to the exclusion for Resident COG$ / Class Lr Units, as entrenched under Declaration clause 35(f) and clause 1.5(e) of the Joint Venture Participation Agreement), has not been reached; and (e) not fewer than three (3) Board members have applied their cryptographic authorisation in the Members Vault for the token minting or recording step, which must occur only in accordance with Declaration Schedule 9, Part A and after completion of the required administrative verification and approval process.

7.2 For lawful Tier 2 Unit issuance, and any corresponding Tier 2 COG$ Token minting or recording permitted under Declaration Schedule 9, Part A, the Members and Trustee must be in compliance with all applicable disclosure obligations under law before any Tier 2 Unit issuance.

7.3 For BNFT: the entity applicant must provide evidence of legal registration (ABN/ACN), confirm active ABN status, and nominate an individually KYC-verified authorised representative.

7.4 On each lawful Class D Unit issue, and for any corresponding Donation COG$ Token minting or recording permitted under Declaration Schedule 9, Part A, the Trustee must within 2 business days: (i) transfer $2.00 directly to Sub-Trust C; (ii) apply $2.00 to acquire approved Members Asset Pool assets through Sub-Trust A; and (iii) record the transaction in the Donation Ledger. Sub-Trust C is registered in the Members Vault as D Class Beneficial Unit Holder for each validly issued Class D Unit.

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PART 4 — SUB-TRUST UNIT STRUCTURE

8. Fixed Unit Trust — Unit 1 and Unit 2

8.1 Sub-Trust A is a fixed unit trust issuing exactly two (2) units. No additional units may be issued. No unit may be subdivided, cancelled, or varied.

8.2 Unit 1 — Sub-Trust B Unit. Held by Sub-Trust B. Confers entitlement to 50% of the Beneficiary Distribution Stream for proportional distribution to all Beneficial Unit holders, including Sub-Trust C as D Class Beneficial Unit Holder. The 50% transfer to Sub-Trust B is mandatory within five (5) business days of receipt (Declaration clause 8.1E(a)(i) and clause 35(g) — entrenched). Class S and kS holders receive proportional distributions as the Foundation's social justice mechanism.

8.3 Unit 2 — Sub-Trust C Unit. Held by Sub-Trust C as D Class Beneficial Unit Holder. Confers Sub-Trust C's entitlement to its proportional share of Sub-Trust B distributions from the Donation Dividend Stream, in addition to the $2.00 direct payment received on each Donation COG$ issue. Transfer mandatory within five (5) business days of dividend receipt (Declaration clause 35(g) — entrenched).

8.4 Individual Beneficial Units are held within Sub-Trust B — not in Sub-Trust A. Unit 1 and Unit 2 are not traded, transferred, or held by individual Members.

8.5 The value of each Sub-Trust B income unit (Beneficial Unit) is calculated at least quarterly: Unit Value per income unit = Distributable amount ÷ Total Beneficial Units on issue (including D Class units held by Sub-Trust C). The Trustee must publish the Unit Value within 5 business days of each quarterly valuation (Declaration clause 37B.1).

8.6 The unit consideration of a Unit is the recorded constitutional amount under Declaration clause 28A. A Member's economic interest is measured by Beneficial Units held, not by any market value attributed to a corresponding COG$ Token (Declaration clause 17.4).

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PART 5 — THE MEMBERS ASSET POOL

9. Permanent Holding and CHESS Registration

9.1 The Members Asset Pool is a permanent collective holding. Assets held in Sub-Trust A cannot be sold, transferred, or otherwise disposed of by the Trustee for any reason, including poor ESG performance. The Trustee has no power of sale over any Members Asset Pool asset. This is entrenched under Declaration clauses 8.1C, 30.2, and 35(z).

9.2 The Foundation's response to poor portfolio company conduct is engagement — not divestment. Because the Members Asset Pool cannot be sold, the Trustee must use its rights as a registered CHESS holder to advocate, through voting and direct engagement, for binding environmental standards, FPIC compliance, and ESG improvement. The FNAC may escalate any environmental or Cultural Heritage concern to a binding Aggregate Unitholder Direction under Declaration clause 13A.

9.3 All ASX Shares must be registered directly on the CHESS Register in the Foundation's name as Trustee of Sub-Trust A. No fund manager, broker nominee, ETF, or other intermediary may be interposed. This is entrenched under Declaration clause 35(d).

9.4 The Trustee must maintain RWA records of the Members Asset Pool through the Approved Ledger Infrastructure as a supplementary transparency layer. The CHESS Register is the primary legal record for all ASX Shares. Any discrepancy must be resolved in favour of the CHESS record and remedied within 10 business days.

9.5 The only permitted disposals are those expressly set out in Declaration clause 8.1C: compulsory acquisition by government authority (proceeds reinvested); and corporate actions by a portfolio company where participation is required to preserve the Foundation's economic interest (proceeds reinvested).

9.6 Where the Board and FNAC jointly identify a company as a Poor ESG Target, the Foundation must establish and publish an acquisition plan targeting a minimum 5% registered holding. Any such acquisition is a permanent commitment. This is entrenched under Declaration clause 35(r).

10. Aggregate Unitholder Direction — Voting

10.1 The Trustee exercises its CHESS-registered voting rights at portfolio company general meetings exclusively as proxy for the Beneficiary Holders' aggregate preference. The Trustee has no independent judgment on how to vote (Declaration clause 13A.4).

10.2 Before each material portfolio company vote, the Members initiate a voting period through the System of not less than 10 business days. The Members record preferences through their Independence Vault Wallets. The Trustee calculates the Aggregate Unitholder Direction as the option receiving the simple majority of preferences cast and exercises its CHESS voting rights accordingly. The Trustee does not convene, control, or interfere with this governance proceeding.

10.3 The Trustee must exercise its CHESS voting rights in accordance with the Aggregate Unitholder Direction. The only exception is where compliance would breach the Corporations Act, the Trustee Act 1936 (SA), or a court order.

10.4 The Trustee must publish the outcome of each portfolio company vote within 5 business days, including the resolution, the Aggregate Unitholder Direction, and how the Trustee voted.

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PART 6 — DIVIDEND DISTRIBUTION AND REINVESTMENT

11. Mandatory Dividend Splits

11.1 On receipt of dividends or income from Members Asset Pool holdings, the Trustee must within five (5) business days apply the mandatory splits in this clause, determined by the Donation Ledger.

11.2 Beneficiary Distribution Stream. All dividends and income received by Sub-Trust A from the Members Asset Pool: (a) 50% transferred to Sub-Trust B (Unit 1) within 5 business days for proportional distribution to all Beneficial Unit holders, including Sub-Trust C as D Class Beneficial Unit Holder; and (b) 50% retained in Sub-Trust A for mandatory reinvestment in the Members Asset Pool.

11.3 Donation Dividend Stream. Dividends and income attributable to the invested component of Donation COG$ proceeds ($2.00 per validly issued Class D Unit, tracked in the Donation Ledger) are split per Declaration clause 8.1E(b): (a) 50% transferred to Sub-Trust B within 5 business days for proportional distribution to all Sub-Trust B income unit holders, with Sub-Trust C receiving its proportional D Class share; (b) 25% retained in Sub-Trust A for mandatory reinvestment; and (c) 25% applied to Trustee Administration Costs. These splits are entrenched (Declaration clause 35(g)).

11.4 The splits in clauses 11.2 and 11.3 are mandatory trust obligations under this Deed and the Trustee Act 1936 (SA). The Trustee has no discretion to vary, defer, or withhold any split. Failure to transfer within 5 business days constitutes a breach of trust enforceable by any Beneficiary Holder in the Supreme Court of South Australia.

11.5 These splits are entrenched founding principles and may not be altered by any resolution (Declaration clause 35(g)).

12. Donation Ledger

12.1 The Trustee must maintain the Donation Ledger accurately from Governance Foundation Day in perpetuity, attributing each Donation COG$ invested component ($2.00 per validly issued Class D Unit) to a defined parcel of ASX Shares or other approved Members Asset Pool assets.

12.2 The Donation Ledger must record: date, amount, and number of validly issued Class D Units and any corresponding Donation COG$ Tokens recorded in accordance with Declaration Schedule 9, Part A; the $2.00 direct Sub-Trust C payment; the $2.00 invested component and assets acquired; cumulative Donation-attributed asset parcel; all dividends received and the applicable splits; and cumulative totals.

12.3 The Donation Ledger and its audited outcomes must be published on the Foundation's website, included in the annual report, and independently audited. The Donation Ledger is a perpetual record retained for at least 7 years after dissolution.

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PART 7 — TRUSTEE POWERS, FEES, AND INDEMNITY

This Part sets out the Trustee's powers and limitations in relation to the Members Asset Pool, consistently with Declaration Part 5A and the Trustee Act 1936 (SA).

13. Powers of the Trustee

13.1 Subject to this Deed and the Declaration, the Trustee has all powers necessary to manage Sub-Trust A in accordance with this Deed and the Declaration, including: (a) to administer the lawful issue of all Unit Classes and any corresponding COG$ Token minting or recording permitted under Declaration Schedule 9, Part A through the Members Vault with three-of-Board cryptographic authorisation implemented through the Approved Ledger Infrastructure; (b) to acquire, hold, and manage ASX Shares for the Members Asset Pool directly on the CHESS Register; (c) to exercise CHESS voting rights in accordance with the Aggregate Unitholder Direction; (d) to maintain RWA records of the Members Asset Pool through the Approved Ledger Infrastructure and the Donation Ledger, with the CHESS Register remaining the primary legal record for ASX Shares; (e) to administer the Members Dividend Structure; (f) to open and operate bank accounts; (g) to engage with ASIC, ATO, ACNC, and other regulatory bodies; and (h) to do all things necessary or incidental to the proper administration of Sub-Trust A in accordance with this Deed, the Declaration, the Corporations Act, and the Trustee Act.

13.2 The Trustee must not: (a) sell, transfer, or dispose of any Members Asset Pool asset (Declaration clause 35(z) — entrenched); (b) interpose any intermediary between the Foundation and the CHESS Register (Declaration clause 35(d) — entrenched); (c) lawfully issue Tier 2 Units, or mint or record corresponding Tier 2 COG$ Tokens, without complying with all applicable disclosure obligations under law; or (d) charge any fee from trust property beyond those authorised by clause 14.

13.3 The Trustee must exercise all powers in the best interests of Beneficiary Holders as a whole, in accordance with the Trustee Act 1936 (SA) and applicable fiduciary duties under equity.

14. Trustee Administration Fees and Indemnity

14.1 The Trustee is entitled to 25% of the Donation Dividend Stream (invested-component dividends tracked in the Donation Ledger) received by Sub-Trust A in each financial year. This is the Trustee's sole fee entitlement from trust property. The $2.00 direct Sub-Trust C payment on each Donation COG$ issue is not trust property and is not part of this fee calculation.

14.2 No management fee, performance fee, or other recurring fee may be charged to trust property.

14.3 The Trustee may be reimbursed for reasonable out-of-pocket expenses properly incurred, deducted from trust property before dividend splits are calculated.

14.4 Tier 1 administration unit membership fees are not fees charged to trust property. They are consideration paid for lawful Unit issuance and associated administrative processing under this Deed and the Declaration.

14.5 Any change to the Trustee's fee entitlement from trust property requires a Special Resolution (75%) of S-NFT holder Members through a Members Poll under the JVPA, notified to Members by publication on the Foundation's website at least 30 days before taking effect.

14.6 The Trustee has a right of indemnity from trust property for all liabilities reasonably and properly incurred, except where arising from fraud, negligence, wilful misconduct, breach of the Trustee Act 1936 (SA) and applicable trust law, or breach of any entrenched provision of the Declaration.

14.7 Sub-Trust A is a non-redeemable Joint Venture trust. No Beneficiary Holder has any right to require the Trustee to redeem, repurchase, or buy back any corresponding COG$ Token, Unit, or Beneficial Unit. This is entrenched under Declaration clause 35(v).

14.8 The Trustee must comply with all applicable laws governing its operation as Trustee of the Members Asset Pool Unit Trust, including AML/CTF obligations, Privacy Act obligations, and the Trustee Act 1936 (SA). No

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AFSL is held or required. The CJVM Hybrid Trust is not a managed investment scheme. The application of any surplus administrative funds to Sub-Trust A is an operational infrastructure reinvestment, not a passive pooling of Member contributions. The Members Asset Pool is the operational resource base of the Joint Venture, collectively directed and controlled by the Members through their proprietary systems.

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PART 8 — TRUSTEE DUTIES

15. Fiduciary Duties

15.1 The Trustee owes the following duties to all Beneficiary Holders under the Trustee Act 1936 (SA) and applicable equitable principles: (a) to act in the best interests of Beneficiary Holders as a whole; (b) to keep Trust Fund assets strictly separate from the Trustee's own property and separate from Sub-Trust B and Sub-Trust C assets; (c) to exercise reasonable care, skill, and diligence; (d) not to profit from the trust or permit conflicts of interest to affect its duties; and (e) to comply with this Deed, the Declaration, the Corporations Act, the Trustee Act 1936 (SA), and applicable trust law.

15.2 The dividend distribution splits are mandatory and non-discretionary. The Trustee has no power to vary or defer any transfer to Sub-Trust B or Sub-Trust C.

15.3 Before acquiring a significant shareholding in a company whose tenements materially overlap with Traditional Owner Country, the Trustee must obtain FPIC from the relevant Traditional Owners under Declaration clause 33C.

15.4 The Trustee must consult the FNAC before: any significant acquisition affecting Traditional Owner Country; publishing or amending the Investment Policy; identifying a Poor ESG Target; and exercising voting rights on matters affecting Traditional Owner Country.

15.5 Cultural Heritage impact under the Aboriginal Heritage Act 1988 (SA) must be a mandatory consideration in every proposed Members Asset Pool acquisition.

15.6 Non-MIS statement. The CJVM Hybrid Trust is not a managed investment scheme within the meaning of section 9 of the Corporations Act. The Trustee must not represent to any third party, regulator, or court that the CJVM Hybrid Trust is or may be a managed investment scheme. The Members' position is that the CJVM Hybrid Trust is a community Joint Venture operating through a trust structure, not a managed investment scheme. The third limb of the section 9 definition is not satisfied because the Members exercise day-to-day control. This is the Foundation's self-assessed position. This prohibition reflects the character of the CJVM Hybrid Trust as a Joint Venture Cryptographic Governance, Resource Management and Distribution System. The regulatory obligations specific to a registered MIS under Chapter 5C do not apply. The Members operate the trust as a Joint Venture Cryptographic Governance, Resource Management and Distribution System. The Members exercise day-to-day control through continuous individual operational capacity via their Independence Vault Wallets and collective governance authority through Members Polls, as defined in the Joint Venture Participation Agreement. The Trustee's multisignature role is a security authentication function that does not constitute operational control.

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PART 9 — REPORTING, TRANSPARENCY, AND AUDIT

16. Annual Reporting

16.1 The Trustee must publish, as part of the Foundation's annual report: (a) Members Asset Pool composition and valuation; (b) CHESS Register holdings updated quarterly; (c) all lawful Unit issuances and any corresponding COG$ Token minting or recording events by class (code and full name), together with the total consideration received; (d) Administration Costs breakdowns for each Tier 1 Unit Class and the Trustee administration fee; (e) Donation COG$ / Class D Unit issue splits — total $2.00 direct payments to Sub-Trust C and total $2.00 invested components; (f) total dividends and dividend structure splits, including D Class Beneficial Unit distributions through Sub-Trust B; (g) the Donation Ledger and its audited outcomes; (h) the Unit Value calculated quarterly; (i) all portfolio company votes cast, the Aggregate Unitholder Direction, and how the Trustee voted; (j) any Poor ESG Target acquisition plans; and (k) the FNAC's annual assessment of Sub-Trust A's ESG and Cultural Heritage compliance.

16.2 Sub-Trust A records must be maintained under Australian Accounting Standards and included in the Foundation's annual audited financial statements presented to Beneficiary Holders at each AGM.

16.3 The Unit Value must be published within 5 business days of each quarterly valuation, including: valuation date; methodology; total Sub-Trust A value; total Beneficial Units on issue; and resulting Unit Value per unit.

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PART 10 — DECLARATION CONSISTENCY AND ENTRENCHED PROTECTIONS

17. Primacy of the Declaration

17.1 Any provision of this Deed inconsistent with any provision of the Declaration — including any entrenched provision listed in clause 35 — is void and of no legal effect.

17.2 Selected key entrenched provisions applicable to Sub-Trust A:

Clause	Subject	Effect on Sub-Trust A
35(c)	Ring-fencing	Sub-Trust A permanently ring-fenced from Sub-Trust B and Sub-Trust C
35(d)	Direct CHESS	No intermediary — all ASX Shares held directly on CHESS Register
35(f)	Anti-capture	1,000,000 Units across all classes combined (subject to Lr exclusion; see Declaration clause 35(f))
35(g)	Dividend splits	50/50 Beneficiary Distribution Stream; Donation Dividend Stream 50/25/25 — cannot be altered
35(j)	Stewardship Season	ASX COG$ (Class A) — 12-month Stewardship Season from Expansion Day
35(q)	Social justice	Personal S-NFT COG$ / Class S Units and Kids S-NFT COG$ / Class kS Units each activate one corresponding Beneficial Unit on lawful Unit issue. Any corresponding COG$ Token may be minted or recorded only in accordance with Declaration Schedule 9, Part A.
35(r)	Poor ESG	Foundation must target minimum 5% shareholding in Poor ESG companies
35(t)	Multisig	All Members Vault operations require 3 Board members' authorisation
35(v)	Non-liquid	No corresponding COG$ Token, Unit, or Beneficial Unit may be redeemed for fiat — no redemption right
35(w)	No fiat sale	No corresponding Unit or COG$ Token may be sold in secondary dealings for fiat or listed on any exchange
35(x)	Fixed price	Personal S-NFT COG$ membership fee permanently fixed

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		at $4.00; Kids S-NFT COG$ at $1.00
35(z)	No disposal	Members Asset Pool assets cannot be sold, transferred, or disposed of for any reason

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PART 11 — AMENDMENT, WINDING UP, AND GENERAL PROVISIONS

18. Amendment

18.1 This Deed may be amended only by Special Resolution (75%) of S-NFT holder Members through a Members Poll under the JVPA (or, solely in respect of Trustee structure matters, B-NFT holders as provided by the Declaration), in accordance with Declaration clause 40.1. No amendment may be inconsistent with any entrenched provision.

18.1A Trustee amendment obligation. Where a valid Members Poll under the JVPA directs the Trustee to amend this Deed, the Trustee must execute the required amendment within 30 days of that direction, or such other period as the resolution specifies. The Trustee may not refuse to execute such amendment except where compliance would require the Trustee to breach an entrenched provision of the Declaration or applicable law. Written reasons must be provided to the Members within 5 business days of any refusal. The Trustee's obligation to update this Deed is a recording function; it is not an approval function.

18.2 Any amendment affecting Traditional Owner Country, Cultural Heritage, FPIC, the FNAC's role, or the Investment Policy requires prior written FNAC endorsement and independent legal advice from qualified South Australian counsel.

18.3 Material amendments must be notified to Members within 5 business days. Where applicable law requires notification to a regulator (including ASIC, AUSTRAC, or the ATO), the Trustee must notify that regulator within any applicable timeframe.

19. Winding Up

19.1 Sub-Trust A shall be wound up only upon dissolution of the CJVM Hybrid Trust under Declaration clause 41, or upon order of a court. Dissolution or replacement of the Trustee does not dissolve Sub-Trust A.

19.2 The Members Asset Pool must not be liquidated and distributed as cash to individual Beneficiary Holders or for-profit entities on winding up. This is entrenched under Declaration clauses 35(p) and 41.2(c).

19.3 Sub-Trust A assets must be transferred to: (a) an ACNC-registered community organisation with substantially similar objects, approved by Special Resolution (75%) of S-NFT holder Members through a Members Poll under the JVPA; or (b) Sub-Trust C's designated charitable recipients. All pending distribution transfers required under this Deed must be completed before dissolution.

19.4 The Trustee must consult the FNAC before selecting recipient organisations and must give priority to First Nations-led organisations.

20. General Provisions

20.1 This Deed is governed by and construed in accordance with the laws of South Australia, Australia.

20.2 The courts of South Australia have non-exclusive jurisdiction to determine disputes under this Deed. Any Beneficiary Holder may bring proceedings in the Supreme Court of South Australia for breach of trust.

20.3 The Trustee acts in its trustee capacity. Trust Fund assets are not available for the Trustee's personal or corporate liabilities.

20.4 Upon each change in the trustee structure of the CJVM Hybrid Trust under the Declaration, the incoming trustee automatically assumes all rights, powers, duties, and obligations of the trustee under this Deed. No re-execution of this Deed is required. However, the outgoing trustee and the incoming trustee must execute any deed, notice, transfer, vesting instrument, registry form, bank mandate, CHESS re-registration, or other document reasonably necessary to evidence, perfect, register, vest, or otherwise operationalise that transition.

20.5 If any provision of this Deed is held invalid, it must be read down to the minimum extent necessary. If it cannot be read down, it is severed and the remaining provisions continue in full force.

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20.6 This Deed may be executed by electronic signature or by electronic execution pages forming part of one electronically authenticated instrument. Each such execution page and its associated execution record forms part of the one original electronically executed Deed referred to in clause 1.5A. An electronically authenticated PDF produced from the Foundation's secure systems is a legal copy for all purposes. Certified copies made under clause 1.5A are admissible for evidentiary and administrative use.

20.7 Notices to Members shall be given by email (effective next business day) or by publication on the Foundation's website (effective 2 business days after publication).

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SCHEDULE 1 — INITIAL TRUST PROPERTY AND SETTLEMENT

The CJVM Hybrid Trust is constituted by the declaration and Caretaker Trustee, Thomas Boyd Cunliffe, that holds the Initial Trust Property on the trusts of the Declaration. Sub-Trust A does not receive a separate settled sum. Any property later credited to Sub-Trust A constitutes the Trust Fund of Sub-Trust A in accordance with this Deed.

Field	Detail
ASX listing	ASX:LGM (LEGACY MINERALS HOLDINGS LIMITED)
Number of shares	1,545 shares
Account	CRVGS (IG brokerage account)
Book cost	$239.48 AUD
Evidence	IG account statement for account CRVGS
Held for	COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust

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SCHEDULE 2 — CLASS STRUCTURE AND ADMINISTRATIVE SCHEDULES

This Schedule is operative and forms part of this Deed. The full Class Structure table is set out in Schedule 9, Part A of the Declaration. Declaration Schedule 9 governs lawful issue conditions and corresponding COG$ Token-recording conditions. Part A of this Schedule addresses funds-flow and Beneficial Unit consequences only.

Part A — Funds-Flow and Beneficial Unit Outcomes

Unit Class / Corresponding COG$ Token	**Code**	**Tier**	**to Administration Costs**	to Sub-Trust A (Members Asset Pool)	**Beneficial Unit (Sub-Trust B)**
Personal S-NFT COG$	S	1	$3.00	$1.00 applied to ASX COG$/RWA investment component	YES — 1 unit, activated on lawful Unit issue (social justice, cl.35(q))
Kids S-NFT COG$	kS	1	Nil	$1.00 applied to ASX COG$/RWA investment component	YES — 1 unit, held in trust until age 18; automatic conversion to Class S on the child's 18th birthday with no additional unit consideration payable
Business B-NFT COG$ (BNFT)	B	1	$30.00	$10.00 applied to ASX COG$/RWA investment component	YES — 1 unit; limited vote (Trustee structure matters only)
Pay It Forward COG$	P	1	$3.00 applied to administration and set-up of funded membership	$1.00 applied to Sub-Trust A for recipient investment	NONE (before allocation); funded recipient class carries unit on allocation
Resident COG$	Lr	1	Nil (allocated)	Nil	NONE — governance only; allocated 1,000 Class Lr Units per declared eligible Affected Zone overlay, giving an effective 1,001 votes to 1 vote in the relevant Local Decision Vote;

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					weighting does not aggregate across overlays unless expressly provided
Donation COG$	D	1	Nil	$2.00 applied to ASX Shares (Donation Ledger)	NONE personal — Sub-Trust C = D Class Beneficial Unit Holder; also $2.00 paid directly to Sub-Trust C on lawful Class D Unit issue
ASX COG$	A	2	Nil	100% applied to ASX Shares	YES — 1 unit (Members Asset Pool participation unit; 12-month Stewardship Season from Expansion Day)
Landholder COG$	Lh	2	Nil	100% applied to ASX Shares	YES — 1 unit (Members Asset Pool participation unit; weighted local vote)
Business Property COG$	BP	2	Nil	100% applied to ASX Shares	YES — 1 unit (Members Asset Pool participation unit)
RWA COG$	R	2	Nil	100% applied to approved assets	YES — 1 unit (Members Asset Pool participation unit)
Community COG$	C	1 / 2	Nil	Contributed effort consideration	NO — immutable record of barter; no Beneficial Unit

Part B — Dividend Distribution Splits (Entrenched — Declaration clause 35(g))

Stream	Sub-Trust A Reinvestment	Admin Costs	Sub-Trust B (Unit 1)	Sub-Trust C

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Beneficiary Distribution Stream (all Members Asset Pool dividends attributable to validly issued Units)	50% — mandatory reinvestment	Nil	50% within 5 business days — all Beneficial Unit holders incl. Sub-Trust C as D Class holder	D Class proportional share through Sub-Trust B
Donation Dividend Stream — invested component ($2.00/Class D Unit, Donation Ledger)	25%	25% to Trustee administration	50% within 5 business days — Sub-Trust C receives proportional D Class share	D Class share through Sub-Trust B; also $2.00 direct on lawful Class D Unit issue
Donation COG$ direct payment — on lawful Class D Unit issue (not a dividend)	N/A	N/A	N/A	$2.00 per validly issued Class D Unit paid directly to Sub-Trust C within 2 business days of lawful issue

UNIT CLASSES SUMMARY AND CORRESPONDING COG$ TOKEN REPRESENTATIONS

Interpretive note: where a Unit Class summary refers to different recorded constitutional issue prices by pathway, holder type, or eligibility basis, those differences arise only from the class architecture and pathway rules set out in the Declaration and do not confer any general Trustee discretion to vary price.

Unit Class / Corresponding COG$ Token	Unit Class Code	Governance	Consideration / Funds	Dividend Split	Beneficial Unit (Sub-Trust B)	Tier
Personal S-NFT COG$	S	One (1) national vote — all Foundation matters (cl.11.1). Entrenched cl.35(e).	$4.00: $3.00 admin; $1.00 Sub-Trust A	BDS: 50% Sub-Trust B within 5 days; 50% retained Sub-Trust A	Yes — 1 unit. Soulbound. Social justice mechanism cl.35(q).	1
Kids S-NFT COG$	kS	One (1) national vote via parent/guardian proxy until age 18 (cl.25.3). Adult activation occurs automatically on the child's	$1.00: $1.00 Sub-Trust A	BDS: 50% Sub-Trust B; 50% retained Sub-Trust A. Income held in trust until age 18.	Yes — 1 unit held in trust until age 18 (cl.25.1). Automatically converts to Class S on the child's 18th birthday with no additional unit	1

		18th birthday with no additional unit consideration payable under cl.25.4.			consideration payable. Any update to the correspondin g Token record must be made only in accordance with Declaration Schedule 9, Part A.	
Business B-NFT COG$	B	One (1) limited vote — RE or trustee appointment/ removal only (cl.26A.2). No national vote.	$40.00: $30.00 admin; $10.00 Sub-Trust A	BDS: 50% Sub-Trust B within 5 days; 50% retained Sub-Trust A	Yes — 1 unit (cl.26A.2(b)) . Entity-bound .	1
Pay It Forward COG$	P	No governance right before allocation. Funded recipient class carries 1 national vote on allocation.	$4.00: $3.00 admin; $1.00 Sub-Trust A for recipient. Donor cap $40,000 p.a.	No yield before allocation. Funded recipient class carries yield on allocation.	None before allocation; P Class entry cancelled on allocation.	1
Donation COG$	D	No governance right on donor (cl.24.1).	$4.00: $2.00 direct to Sub-Trust C at time of issue; $2.00 Sub-Trust A. Donation Ledger maintained (cl.24.3).	Donation Dividend Stream: 50% Sub-Trust B (incl. Sub-Trust C as D Class holder); 25% Sub-Trust A reinvestment; 25% Trustee admin. Plus $2.00 direct to Sub-Trust C per issue.	None personal on donor. Sub-Trust C = D Class Beneficial Unit Holder: 1 unit per validly issued Class D Unit (cl.24.1).	1
Resident COG$	Lr	Weighted local governance rights only in relation to	No fee — allocated by reason of verified residency in	NO YIELD — Lr carries no beneficial interest and	None — Class Lr is not a Beneficial Unit Holder.	1

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		the specific declared Affected Zone overlay for which the Class Lr Units were allocated. An eligible resident receives 1,000 Class Lr Units per declared zone overlay, producing an effective 1,001 votes to 1 vote in the relevant Local Decision Vote. No national vote. Weighting does not aggregate across overlays unless expressly provided by the Declaration or the Voting Weight Rules.	a declared Affected Zone overlay.	no income entitlement.		
ASX COG$	A	No national governance vote by this class alone.	$4.00 per Class A Unit (SNFT pathway); $40.00 per Class A Unit (BNFT pathway). Full proceeds to Sub-Trust A. 12-month Stewardship Season from Expansion Day (cl.22.3).	BDS: 50% Sub-Trust B within 5 days; 50% retained Sub-Trust A.	Yes — 1 unit (Members Asset Pool participation unit). Anti-capture cap: 1,000,000 Units across all classes combined (subject to Lr exclusion	2

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			Entrenched cl.35(j).		— Declaration clause 35(f)).	
Landholder COG$	Lh	Weighted local governance rights only in relation to the relevant declared Affected Zone or overlay, as provided in the Declaration and the Voting Weight Rules from time to time. Up to 1,000 Class Lh Units per hectare of eligible land. No national vote.	$4.00 per Class Lh Unit. Full proceeds applied through Sub-Trust A to acquire ASX Shares or other approved Members Asset Pool assets. Max 1,000 Class Lh Units/hectare.	BDS: 50% Sub-Trust B within 5 days; 50% retained Sub-Trust A.	Yes — 1 unit per validly issued Unit. Members Asset Pool participation unit.	2
Business Property COG$	BP	Weighted local governance rights only in the relevant Affected Zone (cl.12.1(b)). Max 1,000 Class BP Units/hectare. No national vote.	$40.00 per Class BP Unit. Full proceeds to Sub-Trust A. Max 1,000 Class BP Units/hectare.	BDS: 50% Sub-Trust B within 5 days; 50% retained Sub-Trust A.	Yes — 1 unit per validly issued Unit (cl.8.1B). Members Asset Pool participation unit.	2
RWA COG$	R	No national vote and no local weighted vote by this class alone (cl.23A.4).	$4.00 per Class R Unit (SNFT pathway); $40.00 per Class R Unit (BNFT pathway). Full proceeds to Sub-Trust A for	BDS: 50% Sub-Trust B within 5 days; 50% retained Sub-Trust A.	Yes — 1 unit from moment of lawful issue (cl.23A.3). Members Asset Pool participation unit.	2

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			approved RWA acquisition (cl.23A.3).			
Community COG$	C	No governance vote.	No purchase fee unless Declaration later amended (cl.23D.1). Allocated for approved contributed efforts.	Not applicable — Class C confers no dividend entitlement.	No — immutable record of barter; no Beneficial Unit.	1 / 2

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EXECUTION

This instrument is executed as a deed by Thomas Boyd Cunliffe as Declarant and as Caretaker Trustee of Sub-Trust A by electronic means in accordance with the Electronic Transactions Act 1999 (Cth) and, where applicable, section 14G of the Electronic Transactions Act 2000 (NSW). No wet ink signature or paper counterpart is required. If witnessing is required by applicable law, the witness may attest electronically, including by separate audio-visual connection, and that attestation forms part of this Deed's own Deed Execution Record. If this Deed is executed on the same calendar date as the Declaration by a separate audio-visual connection held shortly following execution of the Declaration, it remains separately executed but is deemed for instrument-suite dating and effect to take effect on that same date.

DECLARANT

Signed by	**Thomas Boyd Cunliffe**
Electronic signature	**Settlement evidence note: IG account CRVGS — 1,545 ASX:LGM shares — book cost $239.48 AUD. Sub-Trust A arises as a ring-fenced division of the CJVM Hybrid Trust; no separate settled sum is required. The initial parcel is appropriated now, and must be transferred into the trust's required compliant holding structure as soon as operationally practicable.**
Name	Thomas Boyd Cunliffe
Capacity	as Declarant
Execution date	
Electronic witness attestation	If witnessing is required by applicable law: electronic attestation of witness, including by separate audio-visual connection where permitted by law.

TRUSTEE — SUB-TRUST A

Signed by	**Thomas Boyd Cunliffe**
Electronic signature	
Name	Thomas Boyd Cunliffe
Capacity	as Caretaker Trustee of Sub-Trust A of the COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust
Execution date	For execution-record custody and authenticated-copy protocol, see clause 1.5A.
Electronic witness attestation	If witnessing is required by applicable law: electronic attestation of witness, including by separate audio-visual connection where permitted by law.

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